

**IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION HELD AT
CAPE TOWN**

CASE NO.: **WEC123564-25**

In the matter between:

WILBUR MATTHEE APPLICANT

and

**MEDSCHEME HOLDINGS (A Division of AfroCentric Health)
RESPONDENT**

**APPLICANT'S REPLYING AFFIDAVIT TO THE RESPONDENT'S OPPOSITION TO
CONDONATION**

I, the undersigned, WILBUR WILLIAM MATTHEE, do hereby make oath and state:

1. INTRODUCTION AND AUTHORITY

1.1. I am an adult male, the Applicant in this matter, and a Health Services Management Nurse Specialist (Care Manager) employed by the Respondent at its GEMS business unit in Cape Town.

1.2. The facts herein are within my personal knowledge, true and correct, unless otherwise stated. I have personal and direct knowledge of all events and communications referenced.

1.3. I am opposing the Respondent's application to dismiss my condonation request and will demonstrate that: (a) the harm was continuous, placing my referral within time; and alternatively, (b) compelling good cause exists for condonation.

2. CORRECTION OF FACTUAL INACCURACIES AND UNFOUNDED ATTACKS

2.1. I must correct material errors and reject unfounded attacks in the affidavit of Mr. Manyathi, which undermine its credibility.

2.2. Correction of My Position: I am not a "care coordinator" as dismissively stated, but a Health Services Management Nurse Specialist (Care Manager). This reflects a pattern of the Respondent's inattention to accuracy.

2.3. Rejection of the Irrelevant "Dismissal" Argument: My case concerns unfair labour practices, not dismissal. The Respondent's unsolicited argument that my actions warranted dismissal is highly prejudicial and attempts to improperly influence the Commissioner.

2.4. Rejection of the Inappropriate Prayer for Costs: The demand for costs in a CCMA condonation application is punitive and underscores the Respondent's aggressive posture to intimidate me, given my documented financial distress.

2.5. Rejection of Character Attacks: I categorically reject allegations of an "untruthful character." My submissions are backed by documentary evidence. The Respondent's personal attacks are a strategy to distract from their lack of substantive defence.

SECTION 3: THE RESPONDENT'S AFFIDAVIT AS ESCALATING VICTIMISATION & INSTITUTIONAL MALICE

3.1 Aggravated Attack on Protected Characteristics & Medical Condition

The Applicant is compelled to address the content and tone of the Respondent's Affidavit by Mr. Xollie Vincent Manyathi. This document does not constitute a legal defence but represents a continuation and escalation of the very unfair labour practices at issue, providing compelling grounds for enhanced, punitive damages.

3.1.1 The affidavit deliberately and maliciously dismisses my medically documented psychiatric condition—a direct consequence of the Respondent's own discriminatory and victimising conduct—as a cynical “excuse” and “afterthought”. This is not legal argument; it is a direct attack on a protected characteristic (disability/medical condition) that compounds the initial discrimination.

3.1.2 By weaponising my mental health crisis—caused by their actions—against me in a formal legal proceeding, the Respondent demonstrates institutional contempt for employee wellbeing and a shocking disregard for the duty of care. This transforms a health condition into a tool for further victimisation.

3.2 Financial Intimidation & Weaponisation of Process

3.2.1 The Respondent's aggressive and unwarranted demand for costs in a routine condonation application, made with full knowledge of my documented financial destitution (as detailed in previous communications), serves no legitimate legal purpose.

3.2.2 This demand is a deliberate act of financial intimidation, calculated to exert psychological pressure and deter me from pursuing my rights. It exploits my vulnerable financial position—a position created by the Respondent's own unlawful deductions—to threaten further ruin.

3.3 Bad Faith, Personal Attacks & Abuse of Process

3.3.1 The affidavit is riddled with gratuitous personal attacks, labelling me as “untruthful” and characterising my application as an “abuse of the CCMA services”. These are not legal submissions but ad hominem assaults intended to poison the well and discredit me personally.

3.3.2 This demonstrates the Respondent's utter lack of remorse, systemic bad faith, and commitment to continued hostility. It confirms that the initial misconduct was not an aberration but reflective of an organisational culture that attacks rather than addresses complaints.

3.3.3 The affidavit itself thereby eliminates any conceivable possibility of restoring the employment relationship. It proves the victimisation is not historical but ongoing and institutionalised, perpetrated now through the Respondent's legal representatives.

3.4 This Affidavit as Independent Grounds for Maximum & Punitive Damages

3.4.1 The Respondent's choice to respond to serious discrimination allegations with further aggression in a sworn affidavit constitutes an independent, post-referral unfair labour practice (victimisation). It is a conscious decision to escalate rather than remediate.

3.4.2 This conduct warrants a significant punitive damages premium in any award. It proves the need for a deterrent sanction to signal that using legal process to further victimise complainants is unacceptable.

3.4.3 The Commissioner is urged to consider this affidavit not merely as a defence to condonation, but as powerful evidence of the Respondent's character and the imperative for a maximum compensatory and punitive award.

4. THE TRUE NATURE OF THE DISPUTE: A CONTINUOUS PATTERN OF UNFAIR LABOUR PRACTICES

4.1. This dispute encompasses multiple, interconnected unfair labour practices forming a continuous course of conduct from July 2025 to December 2025:

- a. Unfair Labour Practice – Unlawful Deduction & Failure to Accommodate (July 2025).
- b. Unfair Discrimination & Harassment (the "Wilma" incident, 23 September 2025).
- c. Victimisation & Retaliation (doubled unpaid leave, punitive management).
- d. Institutional Bad Faith & Procedural Failure (30-day silence on grievances, whitewashing of complaints, bad-faith de-escalation).

5. THE UNLAWFUL NATURE OF THE JULY 2025 SALARY DEDUCTION

5.1. The Respondent misrepresents the July 2025 incident as a lawful "no work, no pay" application. In reality, its implementation was procedurally unfair and discriminatory.

5.2. Failure to Consult and Lack of Procedural Fairness: The Respondent deducted over 40% of my salary without any prior consultation, despite my explicit request to stagger the amount to prevent destitution. This refusal to engage constituted a lack of procedural fairness.

5.3. Failure to Provide Reasonable Accommodation: My absence was due to a documented psychiatric condition. The employer has a duty to make reasonable accommodation. My request to stagger the deduction was a minimal adjustment. The refusal, while I was in a vulnerable post-hospitalization state, constitutes discrimination based on my medical condition.

5.4. Derogatory Comments and Victimization: The manager's comment that "The Respondent is not a loan company" followed by I "would not feel the missing chunk... because I receive online deliveries weekly" was derogatory and proves the refusal to accommodate was motivated by malicious intent, converting a deduction into an act of victimisation.

6. THE CONTINUOUS HARM AND INSTITUTIONAL BAD FAITH THAT FOLLOWED

6.1. The July incident established a pattern of unfairness that continued unabated, demonstrating a continuous course of conduct:

- a. September 2025: I experienced public discrimination (the "Wilma" incident) and immediate retaliation (doubled unpaid leave).
- b. October 2025: Senior management whitewashed the discrimination complaint as a "typo," HR and union accept demonstrating institutional bad faith.
- c. November 2025: I filed a formal grievance about the hostile environment. The Respondent met this with 30 days of institutional silence. HR and union.
- d. Early December 2025 – The Escalation and De-escalation:
 - i. On 4 December 2025, after 30 days of silence from HR and the union followed by +20 days silence by senior management, I escalated the entire matter to executive leadership.
 - ii. The executive leadership de-escalated the matter back to the very department and manager accused of causing the harm.
 - iii. Faced with being returned to the source of the problem, I had no reasonable alternative and filed the CCMA referral.
 - iv. The de-escalated department contacted me to schedule a meeting notifying them of the case is now with the CCMA. I stipulated basic safeguards: a clear agenda and a recorded meeting to ensure transparency.
 - v. The department refused these basic terms, creating a procedural deadlock.

vi. I therefore formally notified the department that I could not attend without safeguards and would seek oversight elsewhere.

vii. As the next logical step, and true to my word, I formally notified the Board's Social & Ethics and Risk Committees the following day. This was a good-faith report of a material governance failure.

6.2. This sequence proves my actions were sequential, reasonable, and forced by the Respondent's conduct. The "delay" encompasses the period I was cycled through this broken internal process.

7. PRIMARY LEGAL ARGUMENT: THE HARM WAS CONTINUOUS, RESETTING THE REFERRAL CLOCK

7.1. Legal Principle: Where unfair labour practices constitute a continuing wrong, the 90-day period for referral resets for as long as the conduct persists. The last act in the continuum sets the clock *Gauteng Department of Health v Tsomakae* (GAJB 5554-16) [2017].

7.2. Application: The Respondent's misconduct was a continuous course of conduct that only culminated with the institutional bad faith and refusal to engage transparently in early December 2025. My referral is therefore within 90 days of the last confirming act of the continuing wrong.

8. ALTERNATIVE ARGUMENT: COMPELLING GOOD CAUSE FOR CONDONATION

Should the Commissioner find the continuous harm principle not fully applicable, I demonstrate compelling good cause.

8.1. Reason for Delay – Exhaustion of Remedies: Any delay was due to my good-faith exhaustion of every internal and governance channel, a process systematically thwarted by the Respondent. The CCMA referral was a last resort made promptly once this became clear.

8.2. Prospects of Success are Overwhelming: I possess direct evidence for each allegation (payslips, screenshots, emails, medical certificates). The Respondent's affidavit avoids engaging with this substance.

8.3. Prejudice: The prejudice to me—destitution, health crisis—if denied a hearing is catastrophic. Any administrative inconvenience to the Respondent is negligible.

9. THE RESPONDENT'S CLAIM OF "PREJUDICE" IS WITHOUT MERIT AND DEMONSTRATES ITS BAD FAITH

9.1. The Respondent claims in its affidavit (paragraph 9.1) that it will suffer "severe prejudice" should my application proceed because it would need to use "resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute."

9.2. This claim is disingenuous and reveals the Respondent's true disregard for the seriousness of this matter and the imbalance of power:

- a. ****Relative Prejudice is Wholly Mismatched:**** The Respondent, a large JSE-listed corporate entity, complains of the administrative and financial inconvenience of travel. I, an individual employee, am facing ****actual destitution, inability to afford food and medication, and severe health deterioration****. To equate corporate travel logistics with the threat to an individual's basic survival and health is not only irrational but morally indefensible. Any prejudice to the Respondent is purely financial and administrative; the prejudice to me is existential.
- b. ****The Respondent Created This Dispute Through Its Own Conduct:**** The Respondent's suggestion that it is being held to ransom is an inversion of reality. The dispute exists ****solely because of the Respondent's own actions****: its unlawful deduction, its discriminatory conduct, its victimisation, and its systemic failure to address my grievances. Having created the harm, it cannot now claim prejudice when called to account for it.
- c. ****Travel is a Normal Business Cost in a National Company:**** The Respondent, as a national healthcare administrator, operates across the country. Requiring managers to travel for a formal legal proceeding regarding serious misconduct within its ranks

is a normal cost of doing business and upholding the law. Framing this as an undue burden is an admission that it views its own legal and ethical accountability as an optional inconvenience.

D. ****Modern Technology Provides Alternatives:**** Should travel genuinely be a concern, the Respondent could have explored or proposed virtual mediation or arbitration. Its failure to do so and immediate leap to claiming “severe prejudice” underscores its strategy to use cost as a barrier to justice.

- d. ****The Claim Undermines the CCMA’s Authority:**** Implicit in the Respondent’s argument is the suggestion that an employee in one city should be barred from justice if the employer’s head office is in another. This strikes at the heart of the CCMA’s national mandate to provide accessible dispute resolution for all employees, regardless of geography.

9.3. Conclusion on Prejudice: The Respondent’s claim of prejudice is not a valid legal objection but a tactical one, designed to portray me as an inconvenience rather than a wronged employee seeking redress. The overwhelming and documented prejudice lies with me. To deny condonation based on the Respondent’s purported travel costs would be a grave miscarriage of justice, prioritising corporate convenience over an individual’s right to be heard on matters of discrimination, victimisation, and survival.

10. CONCLUSION

10.1. My referral is, on the correct legal analysis, within time due to the continuous nature of the harm. Alternatively, more than sufficient good cause exists.

10.2. To dismiss this application on a technicality would sanction the Respondent's strategy of institutional bad faith and deny justice.

11. PRAYER FOR RELIEF

I respectfully request that the Honourable Commissioner:

11.5. Grant such further relief as deemed just.

11 DEC 2025
